HILCHOT SHABBAT

Kli Sheni, Irui Kli Rishon, Kalei HaBishul: Hilchot Shabbat

Given Thursday 26 February 2026 · מלאכת בישול — Siman 318, Seif 4 Pt. 2

Siman: 318 (Bishul — Cooking on Shabbat) **Seif:** ד (Dalet) — Continued **Topics:** Bishul Achar Bishul B'Lach (continued), The Rema's Position, Sefardi/Ashkenazi Interactions, Hotplates on Timers, Kli Sheni, Irui Kli Rishon, and Kalei HaBishul

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Recap: Where We Are in Siman 318

- **Seifim 1–2:** Ma'aseh Shabbat — the penalty/consequences of cooking on Shabbat (intentional and unintentional), who may benefit and when. Written in the context of bishul but applies to all melachot.
- **Seif 3:** Toldot Ha'Or vs. Toldot HaChamah — the paradox that cooking directly in the sun is permitted, but cooking with something heated by the sun is forbidden. Applications: dud shemesh, microwave.
- **Seif 4 (Part 1 — previous week):**
- Machloket #1: Cooking from Ma'achal Ben Drosai to fully cooked — Rambam (asur de'oraita) vs. Rosh (mutar). Shulchan Aruch rules like Rambam.
- Machloket #2: Bishul Achar Bishul B'Lach — Rambam (ein bishul achar bishul even for liquids) vs. Rosh (yesh bishul achar bishul for liquids). Shulchan Aruch rules like the Rosh.
- Defining solid vs. liquid for mixed dishes (Chacham Ovadia: go by the nature/name of the dish).

Bishul Achar Bishul B'Lach — Continued

The Rema's Position (Ashkenazi Ruling)

The Rema does not comment in Seif Dalet itself, but addresses this in **Seif (15) ט"ו**:

דכל שאינו נתנו על גבי האש או הכירה ממש רק סמוך לו אפילו נצטנן מותר

Some say that if a liquid has cooled down, you may reheat it because there is no bishul achar bishul for liquids.

ונהגו להקל בזה אם לא נצטנן לגמרי

The Rema rules: The minhag of Ashkenazim is to be lenient — **you may reheat a liquid, but only if it has not fully cooled down.**

Analysis: Whose Opinion Is This?

The Rema's position does not precisely follow either side:

Opinion	Ruling
Rambam	Even if fully cold, you may reheat — ein bishul achar bishul for liquids
Rosh / Shulchan Aruch	If cooled down below yad soledet bo (45°C), it is subject to further bishul — asur
Rema	Compromise — you may reheat if it hasn't **fully** cooled down (still lukewarm / poshrim)

What Does "Not Fully Cooled Down" Mean?

- **For Sefardim:** "Cooled down" = below yad soledet bo (45°C). Below 45°C, a liquid **certainly** cannot be put back on the hotplate.
- **For the Rema:** "Not fully cooled down" = **poshrim** (lukewarm) — approximately 27–30°C. The key test: **you can still sense that this was once hot.**

The Chazon Ish's Explanation of the Rema

The Chazon Ish explains that the Rema is fundamentally ruling **like the Rambam** — that a cooled liquid is not subject to further bishul. However:

- With a **solid** that has cooled, you can see it has been cooked (its form has changed), so no one will suspect you of cooking for the first time.
- With a **liquid** that has fully cooled, an observer might think you are heating it for the first time.
- Therefore, the Rema adds a **derabanan-level** restriction: only reheat if the liquid is still lukewarm, so it's evident it was previously heated.

Implication: If an Ashkenazi reheated a completely cold liquid, it would **not** be an issur de'oraita — only a violation of this derabanan concern.

Practical Summary: Sefardi vs. Ashkenazi

Scenario	Sefardi (Shulchan Aruch)	Ashkenazi (Rema)
Liquid still above 45°C (yad soledet bo)	See discussion below	Mutar to reheat
Liquid lukewarm (27–30°C, poshrim)	Asur — below yad soledet bo	Mutar — still "not fully cooled"
Liquid fully cold	Asur	Asur (derabanan)

Can a Sefardi Ask an Ashkenazi to Reheat a Liquid?

The Question

If Sefardim and Ashkenazim are eating together and the soup has cooled, can the Sefardi ask his Ashkenazi friend to put it on the hotplate (since for the Ashkenazi, if it's still lukewarm, it's permitted)?

The Comparison to Early Shabbat Acceptance

One might compare this to the well-known halacha about early Shabbat acceptance:

- If you accepted Shabbat early (e.g., 7:30 PM in summer) but it's still permissible for others (Shabbat doesn't start until 9:15 PM), you **may** ask someone who hasn't accepted Shabbat to do melachah for you.
- **Reason:** You **had the potential** to do the melachah at that time — you voluntarily gave it up by accepting Shabbat early.

Why It's Different Here

The Tzitz Eliezer and Chacham Ovadia both rule: **A Sefardi may NOT ask an Ashkenazi to reheat liquid.**

- With early Shabbat: you had the **potentiality** to do the melachah — you chose to accept Shabbat early.
- With bishul achar bishul b'lach: the Sefardi **never** has the potential to reheat the liquid. The Shulchan Aruch's ruling means it is always forbidden for a Sefardi on Shabbat. Therefore, you cannot ask someone else to do what you could never do yourself.

What Is Permitted

- If the Ashkenazi **of his own accord** heats it up for himself, the Sefardi may partake.
- If the Ashkenazi heated it and the Sefardi benefits without any communication, hint, or implication — it is permitted.
- But **asking, hinting, or implying** that the Ashkenazi should reheat it — asur.

Hotplates on Timers — Chacham Ovadia's Ruling

The Problem

If yesh bishul achar bishul b'lach, a Sefardi cannot take soup from the fridge and put it on a hotplate on Shabbat morning.

The Solution: Place Before the Hotplate Turns On

Chacham Ovadia rules: **You may take the soup out of the fridge and place it on the hotplate before the hotplate turns on** (via a timer). When the timer activates, it heats the soup.

Why This Is Permitted

Multiple factors combine:

1. **Gramma (indirect causation):** The heating is not immediate — it happens when the timer activates later. This is an indirect cause.
2. **Gramma is a machloket Rishonim:** Most Rishonim hold gramma is mutar outright. At worst, gramma is derabanan.
3. **Combined with the machloket on bishul achar bishul b'lach:** Since according to the Rambam there is no bishul achar bishul for liquids, and gramma at worst is derabanan, we can combine the leniencies.
4. **Gramma b'makom mitzvah / hefsed:** Gramma in the context of need is universally permitted.

Important: This leniency does NOT apply to completely uncooked food — only to liquids that were previously cooked.

Practical Application

If the hotplate timer is set to turn on at 11:00 AM — place your liquid dishes on the hotplate at 10:00 AM before going to tefillah. When it turns on, it heats them permissibly.

Asking a Non-Jew to Reheat Liquids

If the hotplate is already on and you need to heat liquids:

You may ask a non-Jew to place the liquid on the hotplate.

- Normally, asking a non-Jew to do melachah on Shabbat is forbidden (amira l'akum).
- However, the Chida writes: when the prohibition itself is subject to a machloket (here, the Rambam permits it), you may rely on the lenient opinion to ask a non-Jew.
- Since according to the Rambam reheating liquids is permitted, you may ask a non-Jew explicitly to heat the liquid, even though we (Sefardim) don't follow that ruling ourselves.

The Biur Halacha: Pouring from an Urn in Two Stages

The Scenario

You're pouring hot water from an urn (kli rishon) into a cup. Halfway through, you stop (someone calls you). You come back 10 seconds later. Can you continue pouring into the same cup?

The Problem (Pri Megadim, cited in Biur Halacha)

1. The water you poured into the cup is now **kli sheni** water.
2. **כלי שני אינו מבשל** — kli sheni cannot cook, meaning this water has "lost" its cooked status in a certain sense.
3. When you now pour more water from the urn (kli rishon) into the cup, you are pouring kli rishon water onto kli sheni water.
4. According to the Shulchan Aruch (yesh bishul achar bishul b'lach), this is problematic — you are "reheating" the kli sheni water.

The Ruling

According to the Pri Megadim and the Biur Halacha: **You should not do this.** When pouring from an urn into a cup, pour in **one continuous stream** — do not stop and resume.

Support from Rabbeinu Yona (Beit Yosef, Siman 253)

Rabbeinu Yona addresses a related case: Can you take hot water from the urn and pour it into your cholent/hamin that is drying out?

Ruling (Chacham Ovadia follows this): You may not. When the water leaves the urn and enters a cup/vessel, it becomes kli sheni. Pouring kli sheni water back into the hamin (kli rishon on the fire) means you are putting "uncookable" water into a cooking vessel — this is bishul achar bishul b'lach.

Practical Implications

- **Pouring from an urn:** Pour in **one continuous stream** into the cup. Do not stop and resume.
- **Adding water to cholent/hamin:** Cannot pour water from the urn via a cup into the hamin (kli sheni water into kli rishon).
- There may be theoretical workarounds like a direct stream from the urn tap into the hamin, but there are practical issues including kashrus concerns of ze'ah (steam making the urn meaty).

A Drop of Water in a Cup

If a cup has been washed and has **a few tiny drops of cold water** at the bottom, you may still pour hot water into it. Multiple leniencies apply: melachah she'einah tzrichah l'gufah (you have no interest in "cooking" those drops), the amount is negligible, and tata'ah gavar considerations (discussed later). Even Ashkenazi poskim (Shevet HaLevi / Rav Wosner) permit this.

Irui Kli Rishon — Pouring from a Kli Rishon

The Major Machloket: Rabbeinu Tam vs. Rashbam

This machloket appears in 4–5 places throughout Shas (Tosfot in Shabbat, Kodashim, Pesachim, etc.):

Position	Held By	Ruling
Irui kli rishon is **like a kli rishon** — it cooks	**Rabbeinu Tam**	Pouring from urn onto raw tea leaves = **issur de'oraita**
Irui kli rishon is **like a kli sheni** — it does not cook	**Rashbam**	Pouring from urn onto raw tea leaves = mutar

Halacha follows Rabbeinu Tam: Irui kli rishon is forbidden. This is the ruling in Shabbat, in Kashrut (Yoreh De'ah), and in Hilchot Pesach.

Kli Sheni — The Major Ashkenazi/Sefardi Divide

The Mishna (Shabbat 145b / discussed on 39a)

כל שבא בחמין מלפני שבת שורין אותו בחמין בשבת — Anything heated before Shabbat may be soaked in hot water on Shabbat.

וכל שלא בא בחמין מלפני שבת מדיחין אותו בחמין בשבת — Anything NOT heated before Shabbat may be rinsed with hot water on Shabbat.

חוץ מן המליח הישן וקוליס האיספנין שהדחתן זו היא גמר מלאכתן — Except for old salted items and small salted fish (sardines), for which rinsing alone completes their cooking.

Three Ways to Learn This Mishna

1. According to Rashbam (We do NOT follow this)

- "You can rinse" = irui from a **kli rishon** (since Rashbam holds irui kli rishon doesn't cook).

- "Except the fish" = you can't even do irui kli rishon on these.
- Kli sheni **never** cooks — not even for delicate items.

2. According to Rabbeinu Tam — First Answer of Tosfot (Ri)

- Since irui kli rishon **does** cook, "you can rinse" must mean from a **kli sheni**.
- **Why say "rinse" (pour from kli sheni) and not "soak" (put in kli sheni)?** Because **you cannot put things in a kli sheni** — forbidden derabanan because **מחזי כמבשל** (it looks like cooking).
- **Major chiddush:** Although כלי שני אינו מבשל de'oraita, it is forbidden **derabanan** because it appears like cooking.

3. According to Rabbeinu Tam — Second Answer of Tosfot

- "You can rinse" means from a kli sheni, AND you could also soak in a kli sheni.
- The Mishna says "rinse" only to set up the exception about the fish (chiddush of the seifa).
- **No issue of mechzi k'mevashel** — kli sheni is fully permitted.

The Halachic Ruling

Ashkenazim (Mishnah Berurah)

Follow the **first answer of Tosfot**:

- **Kli rishon:** Cooks — forbidden de'oraita
- **Irui kli rishon:** Cooks — forbidden de'oraita (Rabbeinu Tam)
- **Kli sheni:** Does not cook de'oraita, but **forbidden derabanan** (מחזי כמבשל)
- **Practical result:** Cannot put tea leaves, a tea bag, or most items into a kli sheni. Salt, sugar, and certain spices may be permitted.

Sefardim (Chacham Ovadia)

Follow the **second answer of Tosfot**:

- **Kli rishon:** Cooks — forbidden de'oraita
- **Irui kli rishon:** Cooks — forbidden de'oraita (Rabbeinu Tam)
- **Kli sheni:** Does NOT cook and **no issue of mechzi k'mevashel** — fully permitted
- The concept of mechzi k'mevashel is not found in the Gemara; it is a chiddush of Tosfot that we do not accept
- Additionally, even if it existed, it would only be derabanan — safek derabanan l'kula
- **Practical result:** May pour water from the urn into a cup and then put a tea bag into it. (Cannot pour directly from the urn onto the tea bag — that's irui kli rishon.)

Kalei HaBishul — Things Easily Cooked

The Concept

The Mishna's exception — old salted items and small salted fish — introduces **kalei habishul**: certain extremely delicate/sensitive items that can be cooked even in a kli sheni.

The Rambam's Expansion

לאו דוקא אלו דהוא הדין לכל כיוצא בזה דבר דק ורך ביותר

Not only the specific items mentioned. **Anything extremely soft, thin, and sensitive to heat** is classified as kalei habishul.

Examples mentioned by poskim: Raw eggs, very thin salted fish (sardines), items salted for over a year, possibly tea leaves.

Rules for Kalei HaBishul

Even according to those who permit kli sheni generally:

- **Cannot be put in a kli sheni**
- **Cannot have irui from a kli sheni poured onto them**
- **CAN be put in a kli shlishi** (third vessel) — see below

Kli Shlishi — The Debate

Position	Held By	Ruling
No distinction between kli sheni and kli shlishi — forbidden even in kli shlishi as long as yad soledet bo	**Chazon Ish**	Asur in kli shlishi
Kli shlishi is permitted even for kalei habishul	**Rav Moshe Feinstein**	Mutar in kli shlishi

Halacha: Virtually everyone — both Sefardim and Ashkenazim — follows **Rav Moshe Feinstein**. Kli shlishi is permitted for everything, including kalei habishul.

The Additional Ashkenazi Stringency

Beyond mechzi k'mevashel, Ashkenazi poskim add: since we don't know exactly which items qualify as kalei habishul, **assume everything might be** (except items the Gemara explicitly says are hard to cook, such as raw meat and cinnamon). Combined with the Chazon Ish's view, this would create problems even in a kli shlishi — but in practice, most Ashkenazim follow Rav Moshe that kli shlishi resolves the issue.

Shulchan Aruch Text — Seif Dalet (Full)

תבשיל שנתבשל כל צרכו יש בו משום בישול אם נצטנן — A fully cooked dish is subject to bishul if it has cooled down.

ואם לא נתבשל כל צרכו אפילו נתבשל כמאכל בן דרוסאי שייך בו בישול אפילו בעודו רותח — If not fully cooked, even if ma'achal Ben Drosai, bishul applies even while still hot.

והני מילי שיש בישול אחר בישול בתבשיל שיש בו מרק — This applies to dishes with liquid.

אבל דבר שנתבשל כבר ויבש מותר ליתנו בחמין בשבת — But a dry, fully cooked item may be placed in hot water on Shabbat.

ואם הוא דבר יבש שלא נתבשל מערב שבת אין שורין אותו בחמין בשבת — If dry and NOT cooked before Shabbat, you may not soak it in hot water.

אבל מדיחין אותו בחמין בשבת — But you may rinse it with hot water [from a kli sheni].

חוץ מן המליח הישן ומן הדג שנקרא קוליס האיספנין שהן צריכים בישול מעט — Except for old salted items and sardine-type fish, which need only minimal cooking [kalei habishul].

Rema's addition: דוקא מצטמק ויפה לו — Bishul achar bishul b'lach only applies if further heating improves it.

Summary Table: Kli Rishon, Irui, Kli Sheni, Kli Shlishi

Level	Status	Sefardi	Ashkenazi
Kli Rishon (on the fire)	Cooks — asur de'oraita	Asur	Asur
Irui Kli Rishon (pouring from kli rishon)	Cooks — asur de'oraita (Rabbeinu Tam)	Asur	Asur
Kli Sheni (cup filled from urn)	Does not cook de'oraita	**Mutar** (no mechzi k'mevashel)	**Asur derabanan** (mechzi k'mevashel)
Irui Kli Sheni (pouring from kli sheni)	Less potent than kli sheni	Mutar	Mutar (for non-kalei habishul)
Kli Sheni for kalei habishul	Can cook delicate items	Asur	Asur
Kli Shlishi (even kalei habishul)	Permitted	Mutar	Mutar (Rav Moshe; Chazon Ish disagrees)

Key Practical Takeaways

1. **Sefardim:** Cannot reheat a liquid that has cooled below 45°C. Ashkenazim: Can reheat if still lukewarm (~27–30°C).
2. **A Sefardi may not ask an Ashkenazi to reheat liquid** — but may benefit if the Ashkenazi did so independently.
3. **Hotplate on a timer:** A Sefardi may place cold liquid dishes on the hotplate **before** it turns on (gramma combined with machloket).
4. **Asking a non-Jew:** If the hotplate is already on, a Sefardi may ask a non-Jew to place liquid on it.
5. **Pouring from an urn:** Pour in **one continuous stream**. Do not stop and resume.
6. **Adding water to cholent:** Cannot pour water from the urn via a cup into the hamin.
7. **Kli sheni:** Sefardim may put a tea bag into a kli sheni. Ashkenazim may not.
8. **Kalei habishul:** Cannot be placed in a kli sheni. Can be placed in a kli shlishi (virtually all poskim).

Preview: Upcoming Topics

- **Seif ה (Heh):** Is there bishul after baking/roasting? (יש בישול אחר אפייה?) — implications for tea, coffee, and instant products.
- Detailed laws of tea and coffee preparation on Shabbat.
- Further details on irui kli rishon (Seif Yud).

Purim Sameach and Shabbat Shalom

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